BY ORDER OF THE SECRETARY
THE AIR FORCE

DEPARTMENT OF THE AIR FORCE
INSTRUCTION 10-2702

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Operations

BOARD OF GOVERNORS
OF THE CIVIL AIR PATROL

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This publication implements Department of the Air Force Policy Directive (DAFPD) 10-27, *Civil Air Patrol*. This publication describes the board membership, the role, principal tasks and structure of the Civil Air Patrol, Board of Governors; the Department of the Air Force relationship with the Board of Governors and other Air Force activities; the procedures for selecting board members and Department of the Air Force support to the Board of Governors. This publication applies to Department of the Air Force civilian employees and uniformed members of the United States Space Force, the Regular Air Force, the Air Force Reserve, and the Air National Guard. In collaboration with the Chief of the Air Force Reserve (AF/RE), the Director of the Air National Guard (NGF/CF), and the Deputy Chief of Space Operations for Human Capital (SF/S1), the Deputy Chief of Staff for Manpower, Personnel, and Services (AF/A1), develops personnel policy for Board of Governors of the Civil Air Patrol. Ensure all records generated as a result of processes prescribed in this publication adhere to Air Force Instruction (AFI) 33-322, Records Management and Information Governance Program, and are disposed in accordance with the Air Force Records Disposition Schedule, which is located in the Air Force Records Information Management System. Refer recommended changes and questions about this publication to the office of primary responsibility using the DAF Form 847, *Recommendation for Change of Publication*; route DAF Forms 847 from the field through the appropriate functional chain of command for approval by SAF/MRM workflow email address: **usaf.pentagon.saf-mr.mbx.saf-mrm-workflow@mail.mil**. The authorities to waive wing or unit level requirements in this publication are identified with a Tier ("T-0, T-1, T-2, T-3") number following the compliance statement. See Department of the Air Force Manual (DAFMAN) 90-161, *Publishing Processes and Procedures*, for a description of the authorities associated with the Tier numbers. Submit requests for waivers through the chain of

command to the appropriate Tier waiver approval authority, or alternately, to the requestor's commander for non- tiered compliance items. This publication may not be supplemented.

SUMMARY OF CHANGES

This document has been revised and needs to be reviewed in its entirety. Major changes include updated Title 10 United States Code (USC) references and reorganization of the material for clarity.

1. Overview.

1.1. **Legal Standing and Role of the Board of Governors.** The Civil Air Patrol Board of Governors is the governing body of the Civil Air Patrol in accordance with 10 USC Section (§) 9497, *Board of Governors*. The Board of Governors (BoG) is responsible for the effective, efficient and proper management and fiduciary oversight of the Civil Air Patrol (CAP), a federally supported congressionally-chartered nonprofit corporation, subject to requirements of law and federal regulation. **(T-0)**

1.2. **Dual Nature of Organization.** The CAP acts as both a volunteer civilian auxiliary of the US Air Force to perform non-combatant Air Force Assigned Missions (AFAM), and as a federally-chartered nonprofit corporation. In this latter role, their mission is to enhance and foster civil aviation in local communities (see 36 USC § 40302, *Purposes*) and may provide assistance to states and local governments for disaster relief and other emergency and non-emergency missions (*see* 10 USC § 9493, *Activities performed as federally chartered nonprofit corporation*). The organization will submit an annual report to Congress, pursuant to 36 USC § 40307, *Annual report*, regarding its nonprofit corporate activities. **(T-0)**

2. Roles and Responsibilities.

2.1. **Deputy Assistant Secretary of the Air Force for Reserve Affairs and Airman Readiness. (SAF/MRR).** In accordance with Headquarters Air Force Mission Directive (HAFMD) 1-24, *Headquarters Air Force Mission Directive*, SAF/MRR, on behalf of the Assistant Secretary of the Air Force for Manpower and Reserve Affairs (SAF/MR), serves as the primary Secretariat of the Department of the Air Force (DAF) office for matters pertaining to policy and oversight affecting CAP as the Air Force Auxiliary.

2.2. **Board of Governors (BoG).** The BoG, in accordance with 10 USC § 9497, is the governing body of CAP and shall govern, direct, and manage the affairs of the corporation. **(T-0)**

2.3. **First Air Force (Air Forces Northern).** Is the principal Numbered Air Force responsible for administrative, legal, and programmatic support to CAP.

2.4. **Civil Air Patrol US Air Force (CAP-USAF).** Is the Air Force program office that sets program objectives and defines, monitors, evaluates, and corrects CAP activities.

2.5. **The National Commander.** Serves as the Chief Executive Officer and is responsible for overall control of the organization and reports directly to the BoG.

3. Powers of the Board of Governors. Under 10 USC § 9497(e), *Board of Governors: Powers,* the BoG shall exercise the powers granted to CAP as a federally-chartered non-profit corporation, including the power to adopt and amend a constitution, by-laws, and regulations; adopt and alter a corporate seal; establish and maintain offices in the District of Columbia and the states, territories, and possessions of the United States to conduct its affairs; acquire, own, lease, encumber, and transfer property as necessary to carry out the purposes of the corporation; sue and be sued; and perform any other act necessary and proper to carry out the purposes of the corporation. **(T-0)**

4. Statutory Compliance. Neither the BoG, nor any other component of CAP, may modify or terminate any requirement or authority set forth in law.

5. Principal Tasks. The BoG is responsible for the operation of CAP as a federally-chartered non-profit corporation. As described in the constitution and by-laws, the BoG will:

5.1. **Planning. Revie** w and determine strategic plans and programs for CAP. **(T-0)**

5.2. **Direct.** Direct CAP programs, financial positions, legislative relations, asset allocations, membership, development, and direct improvements to each as needed. The BoG may also consider current and projected policies relating to the effectiveness of CAP support to the Air Force, the nation, and the overall financial and volunteer wellbeing of the organization. **(T-0)**

5.3. **Advisement.** Serve as a pool of expert advisors, either individually or in groups, to various CAP activities. Individual BoG members provide this service at their convenience subject to their availability. **(T-0)**

5.4. **CEO Selections.** Select, retain, evaluate performance and remove the CAP National Commander, who also serves dual-hatted as the Chief Executive Officer of the Corporation. **(T-0)**

5.5. **COO Selections.** Select, retain, evaluate performance and remove the CAP Chief Operating Officer. **(T-0)**

5.6. **IG Programs.** Oversee the CAP Inspector General Program. **(T-0)**

5.7. **Oversee the Adverse Action Panel.** Oversees activities of the CAP Member Adverse Action Panel. **(T-0)**

5.8. **Constitution and By-Laws.** Revise the constitution and by-laws in accordance with **paragraph 3** of this instruction. **(T-0)**

5.9. **Inquiries.** Inquire into any and all aspects of CAP volunteer and corporate activities. **(T-0)**

5.10. **Committees.** Establish standing and ad hoc committees of the BoG, as required, to perform their roles and responsibilities. **(T-0)**

6. Air Force Relationship with Civil Air Patrol. As set forth in 10 USC § 9498, *Regulations*, the Secretary of the Air Force (SecAF) governs the conduct of the CAP when operating as a volunteer civilian auxiliary of the Air Force, prescribes regulations governing the activities of the CAP and, subject to Secretary of Defense approval, arranging assistance by other agencies to support the CAP as an auxiliary of the Air Force. Furthermore, the SecAF may regulate and oversee CAP corporate activities that are supported by appropriated funds, use assets procured with appropriated funds, or involve matters where CAP's activities could give the appearance of endorsement of the action by the Air Force or could be detrimental to the federal government.

7. Department of the Air Force Relationship with the Board of Governors. SAF/MR, delegated to SAF/MRR, serves as the conduit between the DAF corporate structure and the Board of Governors, to advise and address matters related to Secretarial oversight and strategic planning initiatives of mutual interest.

8. Limitation on the authority of the Board. The BoG has no authority to establish or exercise authority over any DAF policy, mission, or activity.

9. Reporting. The BoG is required to provide an annual report to the SecAF on the status of CAP as the civilian auxiliary of the Air Force. This written report will include performance measures in conducting programs and AFAMs during the preceding twelve-month period. SAF/MRR will attend BoG meetings and report to SAF/MR updates regarding Secretarial oversight and strategic planning initiatives. **(T-0)**

10. Board Membership. In accordance with 10 USC § 9497, the BoG is comprised of eleven members. **(T-0)**

10.1. **Department of the Air Force appoints four members.** In accordance with 10 USC § 9497(b)(1), *Board of Governors: Composition,* the SecAF, further delegated to SAF/MR, appoints the four Air Force board members. Appointees may be current or retired Air Force members of any component of the DAF, employees of the United States, or private citizens. **(T-0)**

10.1.1. By virtue of position, the First Air Force Vice Commander will be appointed to serve as an ex officio BoG member to ensure the Air Force operational relationship with the board. **(T-0)**

10.1.2. The CAP-USAF Commander serves as an advisor to the board, ex officio, and attends scheduled BoG meetings.

10.2. **Civil Air Patrol appoints four Members.** Membership is selected in accordance with the constitution and by-laws of the CAP.

10.3. **Joint appointment of three members from interested organizations.** Joint appointees are selected from among the personnel of any federal government agencies, public corporations, nonprofit associations, and other organizations that have an interest and expertise in civil aviation and the CAP mission and vision.

10.3.1. These members are appointed jointly by the SecAF, delegated to SAF/MR, and the National Commander of CAP.

10.3.2. Per 10 USC § 9497 (c)(2), *Board of Governors: Appointments From Interested Organizations,* any vacancy in the position of a member of the BoG under **paragraph 10.3** of this instruction that is not filled within 90 days will be filled by an individual selected by majority vote of the other members of the BoG.

10.4. **Chairman.** The Chairman of the BoG is responsible for the overall direction and effectiveness of the BoG. The Chairman is selected from members referenced in paragraphs **10.1 and 10.2** and in accordance with the constitution and by-laws of CAP. The Chairman position alternates, at the completion of each term, between the DAF and CAP members of the board.

10.5. **Removal of Board of Governors members.** Board members may be removed for cause.

10.5.1. SecAF possesses removal authority for DAF appointed members.

10.5.2. The BoG possesses removal authority for those CAP members appointed in accordance with the constitution and by-laws.

10.5.3. The SecAF and the CAP National Commander can remove, through joint action, the jointly appointed board members.

11. Meetings. The Chairman schedules and convenes the meetings as required with proper notification and approval of the board members in accordance with the CAP Constitution and By-laws.

12. Department of the Air Force Personnel Participation. Attendance at BoG meetings on behalf of the DAF is authorized on official time and official travel. Reimbursement for travel in an official status is in accordance with AFI 65-103, *Temporary Duty/Special Orders* and the Joint Travel Regulation. **(T-1)**

ALEX WAGNER
Assistant Secretary
(Manpower and Reserve Affairs)

Attachment 1

GLOSSARY OF REFERENCES AND SUPPORTING INFORMATION

References

10 USC § 9493, *Activities performed as federally chartered nonprofit corporation*

10 USC § 9497, *Board of Governors*

10 USC § 9497(b)(1), *Board of Governors: Composition*

10 USC § 9497 (c)(2), *Board of Governors: Appointments From Interested Organizations*

10 USC § 9497(e), *Board of Governors: Powers*

10 USC § 9498, *Regulations*

36 USC § 40302, *Purposes*

36 USC § 40307, *Annual report*

HAFMD 1-24, *Assistant Secretary of the Air Force (Manpower and Reserve Affairs)*, 28 January 2019

DAFPD 10-27, *Civil Air Patrol*, 15 December 2022

AFI 33-322, *Records Management and Information Governance Program*, 23 March 2020

AFI 65-103, *Temporary Duty/Special Orders,* 15 August 2019

DAFMAN 90-161, *Publishing Processes and Procedures,* 15 April 2022

JTR, *Uniformed Service Members and DoD Civilian Employees*, 1 June 2023

Prescribed Forms

None

Adopted Forms

DAF Form 847, *Recommendation for Change of Publication*

Abbreviations and Acronyms

AFI—Air Force Instruction

AFAM—Air Force Assigned Mission

BoG—Board of Governors

CAP—Civil Air Patrol

CAP-USAF—Civil Air Patrol United States Air Force

DAFI—Department of the Air Force Instruction

DAFMAN—Department of the Air Force Manual

HAFMD—Headquarters Air Force Mission Directive

SecAF—Secretary of the Air Force

USC—United States Code

Office Symbols

AF/A1—Deputy Chief of Staff for Manpower, Personnel, and Services

AF/RE—Chief of the Air Force Reserve

NGF/CF—Director of the Air National Guard

SAF/MRR—Deputy Assistant Secretary of the Air Force for Reserve Affairs and Airman Readiness

SAF/MR—Assistant Secretary of the Air Force for Manpower and Reserve Affairs

SF/S1—Deputy Chief of Space Operations for Human Capital

Terms

Civil Air Patrol Board of Governors—Responsible for the effective, efficient and proper management and fiduciary oversight of the Civil Air Patrol (CAP)

National Commander—Civil Air Patrol Chief Executive Officer and is responsible for overall control of the organization and reports directly to the Board of Governors.